



“Organisations sometimes hire third-party firms to check whether additional PF is being generated for these employees just to find out if they are actually moonlighting”

ANKITA RAY
PARTNER, CYRIL
AMARCHAND MANGALDAS



“There needs to be trust between both employees and employers to make this [moonlighting] happen, which in large companies will take time to evolve”

SANGEETA GUPTA
SENIOR VP AND CHIEF
STRATEGY OFFICER, NASSCOM



“If an employee violates the end-user agreement of a licensed software to use it [for a side gig], it will be the employer’s responsibility, not the employee’s”

SANJU BALLURKAR
PRESIDENT, EXPERIS IT



“Flipkart was founded by Sachin and Binny Bansal while they worked at Amazon. Freshdesk was founded by Girish Mathrubootham while he was at Zoho”

HARPREET SINGH SALUJA
PRESIDENT, NITES

checks), communicate to their current and potential employees what their contracts mean, what the dos and don’ts are, and to be flexible enough to find roles within the firm where they can hire gig workers or where their own employees can do gig shifts.

Even now, moonlighting is not chronic, but it is the fact that it has set a precedent that is worrisome for organisations. Net result: they are beginning to take a long and hard look at their employment contracts, experts say. “There’s a fair amount of movement to have exclusivity and non-compete-during-the-employment-term clauses if they don’t have them already. The only thing employers are seeking out is whether they should completely ban these practices or should they say, ‘You can do this with our permission’. That becomes a question of talent retention as well,” says Ray of Cyril Amarchand Mangaldas. For instance, Swiggy’s recently announced moonlighting policy requires employees to declare necessary details about highly sensitive projects that leverage professional know-how. The employee can pursue these projects once Swiggy approves.

Putting in checks on possible data breach, loss of confidentiality and productivity impairment, among other things, will be the realistic way to adopt moonlighting, experts say. But that’s way more complicated for IT services firms that operate on multiple contractual caveats

around data security, confidentiality and conflict of interest with their clients, compared to a consumer-tech platform like Swiggy where the tech development is purely for the company’s own use.

If the IT services industry chooses to embrace moonlighting, it has a lot to consider: which roles to permit moonlighting in; ramifications on the contracts the IT services companies have with their clients; how much access to mission-critical data to provide to a moonlighting employee; and how much to invest in that employee’s learning and development. “It will come with riders, and cannot be a blanket approval,” says Randstad’s Giri. Firms also have to consider simplifying approval processes for employees who want to accept projects outside the contract, Nasscom’s Gupta says. “There needs to be trust between both employees and employers to make this happen, which in large companies will take time to evolve,” she says.

Meanwhile, back in Chennai, the UX designer-cum-cricket coach has a plan for himself: Quit his IT job in two-to-three years when his venture starts turning in a profit, and focus full-time on cricket. “By then, younger talent will start coming in [in his industry]. I’m not keen on attending interviews at that stage,” he says. **BT**

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